

25LBCV01819 25LBCV01819

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-01

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Defendant moves for summary

judgment on Plaintiffs' complaint.

Plaintiffs failed to timely file opposition papers, which were due on

8/12/26. Plaintiffs filed grossly

untimely opposition papers on 8/19/26.

Plaintiffs seek relief via CCP §473(b) for their failure to file timely

opposition papers. As this Court has repeatedly

admonished Plaintiffs' attorneys, CCP §473(b) creates the right to file a

motion seeking relief, but nothing in the statute contemplates the Court

ordering such relief in connection with opposition papers, and Plaintiffs have

cited no case interpreting the statute in this manner. The Court has disregarded the late-filed

papers. The ruling is without prejudice

to Plaintiffs' right to file a §473(b) motion if they have grounds to do

so.

Recently, in *Mandell-Brown v. Novo*

Nordisk Inc. (2025) 109 Cal.App.5th 478, 508, the Court of Appeals considered a

situation where a plaintiff failed to file an opposing separate statement prior

to the hearing on the defendant's motion.

The Mandell-Brown Court noted, "Thus, if a plaintiff opposing summary

judgment fails to file a separate statement, and the trial court reviews the

moving papers and concludes the motion is not deficient on its face, it has

discretion under subdivision (b)(3) to grant the motion, without first

undertaking a detailed analysis of the supporting evidence to determine if a

prima facie showing has been made as to one or more of the elements of each

claim."

The Court has reviewed the moving

papers and finds they are not deficient on their face. In light of the lack of opposition and an opposing separate statement, the Court grants the motion.

Recently, in 24LBCV02791, the Court admonished Plaintiffs' attorney as follows:

The Court notes that there have been numerous motions for summary judgment and/or adjudication filed by Honda in various cases without opposition. The Court asks Plaintiff's attorney to dismiss any case or cause of action the plaintiff does not intend to pursue. Requiring the Court to rule on unopposed motions is not an efficient use of judicial resources.

Despite this admonishment, Plaintiffs have neither dismissed the action nor opposed the motion. Again, the motion is granted.

All future hearing dates, including the upcoming motions, FSC, and trial date, are vacated. Defendant is ordered to submit a judgment of dismissal for processing within five days. The Court will hold the proposed judgment for five days for objections.

Defendant is ordered to give notice.